

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

10 cv 5058 (PAE)

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DAVIAL ROWE AND NAGI BENSON,

Plaintiffs,

SECOND AMENDED COMPLAINT

-against-

NEW YORK CITY,
LIEUTENANT MARK PORTO,
NYPD SGT RICHARD MACK OF THE 79th PRECINCT,
POLICE OFFICER JOHN BALESTRIERE SHIELD # 3206,
POLICE OFFICER GREGORY CLARKE SHIELD # 2224,
POLICE OFFICER ANTONIO GONZALEZ SHIELD # 21801,
POLICE OFFICER JORDAN MILLER SHIELD # 18339,
POLICE OFFICER MIRYAM BAEZ SHIELD # 6207,
POLICE OFFICER STEVEN REMARIZ SHIELD # 9306
AND UNIDENTIFIED POLICE OFFICERS

JURY TRIAL DEMANDED

Defendant(s).

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The plaintiffs, complaining of the defendants, by their attorney, FRED

LICHTMACHER, ESQ., respectfully show to this Court and allege:

JURISDICTION

1 Jurisdiction is founded upon the existence of a Federal Question.

2 This is an action to redress the deprivation under color of statute, ordinance, regulation,
custom, or usage of rights, privileges, and immunities secured to plaintiffs by the First, Fourth
and Fourteenth Amendments to the Constitution of the United States pursuant to 42 U.S.C. §
1983.

3 Jurisdiction is founded upon 28 U.S.C. Sections 1331, 1343(3 & 4).

4 Venue is appropriate pursuant to 28 U.S.C. Sections 1391 (b) (1 & 2).

5 This Court has jurisdiction to hear plaintiffs' state claims pursuant to 28 U.S.C. § 1367.

PARTIES

6 The plaintiff, DAVIAL ROWE, is a resident of Kings County in the City and State of New
York.

7 The plaintiff, NAGI BENSON, is a resident of Kings County in the City and State of New

York.

8 Upon information and belief, at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, (NYC) was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and that at all times relevant defendants NYPD Lieutenant Mark Porto, Sgt Richard Mack of the 79th Precinct, Police Officer John Balestriere Shield # 3206, Police Officer Gregory Clarke Shield # 2224, Police Officer Antonio Gonzalez Shield # 21801, Police Officer Jordan Miller Shield # 18339, Police Officer Miryam Baez Shield # 6207, Police Officer Steven Remariz Shield # 9306 and Unidentified Police Officers were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

9 Upon information and belief, at all times hereinafter mentioned, defendants NYPD Lieutenant Mark Porto, Sgt Richard Mack of the 79th Precinct, Police Officer John Balestriere Shield # 3206, Police Officer Gregory Clarke Shield # 2224, Police Officer Antonio Gonzalez Shield # 21801, Police Officer Jordan Miller Shield # 18339, Police Officer Miryam Baez Shield # 6207, Police Officer Steven Remariz Shield # 9306 and Unidentified Police Officers, were employed by the defendant, NYC, as members of its police department.

10 Upon information and belief, at all times hereinafter mentioned, the defendant, NYC, its agents, servants and employees operated, maintained and controlled the New York City Police Department (NYPD), including all the police officers thereof.

11 The NYPD, is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the Commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees and is the final decision maker for that agency.

12 This action arises under the United States Constitution, particularly under provisions of the First, Fourth and Fourteenth Amendments of the Constitution of the United States, and under

federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983 as well as pursuant to the common law of the State of New York.

13 Each and all of the acts of the defendants alleged herein were done by the defendants, acting as state actors acting under color of law.

STATEMENT OF FACTS

14 On January 1, 2010, at approximately 4:50 am plaintiff Benson saw a neighbor in the back of a patrol car, under arrest on Albany Avenue in Brooklyn.

15 Benson was near the patrol car when defendant Balestriere, forcefully and repeatedly hit Benson with the palms of his hands several times without any provocation, driving him backwards.

16 After defendant Balestriere had hit Benson in this manner several times, several of the defendants from the 79th precinct, including defendants Clarke and Remariz, dragged Benson into the alleyway next to 7 Albany Avenue, Brooklyn and beat him by kicking and punching him repeatedly both before and after he was handcuffed.

17 Rowe saw the defendants beating Benson and he came over and asked the defendants to stop.

18 In response to Rowe arriving on the scene and asking the officers to stop beating Benson, defendant Sgt. Mack threw Rowe against the wall, threw him to the ground, punched him and handcuffed him.

19 Neither Rowe nor Benson struck any of the officers or anyone else.

20 The beating of Benson continued on and off for close to three minutes and included several kicks and punches as he lay on the ground with officers, including but not limited to defendant Lt Porto, holding him and having him in handcuffs for a substantial part of the beating.

21 Both plaintiffs were removed to the 79th precinct where Benson was beaten again.

22 Benson was brought to the hospital where one of his several injuries was diagnosed as a bilateral fracture of his nose.

23 The plaintiffs were both falsely charged with several crimes including;

-violation of the NYPL § 120.05(3) Assault in the Second Degree, two counts, a class D Felony;

-violation of NYPL § 120.00 (1) Assault in the Third Degree, two counts, a class A misdemeanor;

- violation of NYPL § 195.05 Obstruction of Governmental Administration in the Second Degree, a class A Misdemeanor;

- violation of NYPL § 205.30 Resisting Arrest, a class A Misdemeanor;

- violation of NYPL § 240.20(1) Disorderly Conduct, a Violation; and

- violation of NYPL § 240.26 (1) Harassment in the Second degree, a Violation.

24 The plaintiffs remained in jail overnight and were brought before a criminal court judge and arraigned on January 2, 2010 at which point Rowe was released on his own recognizance, and Benson had bail set and remained in jail until he was able to raise bail days later.

25 Plaintiffs were again forced to appear in criminal court on January 6, 2010 and a subsequent appearance was then scheduled.

26 On June 25, 2010, the false charges were dismissed and sealed.

27 On or about January 20, 2010 the plaintiffs filed their Notice of Claim.

28 50H Hearings were conducted as to the plaintiffs on December 15, 2010.

29 Over thirty days have elapsed since the service of the aforementioned Notice of Claim and adjustment or payment thereof has been neglected or refused.

30 The state claims in this cause of action are commenced within one year and ninety days of when these causes of action arose as to plaintiffs and plaintiffs' federal claims are brought in a timely manner, within three years of the date they accrued.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS
VIOLATION OF THE PLAINTIFFS' RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AMENDMENT VIA
THE USE OF EXCESSIVE AND UNREASONABLE FORCE

31 Plaintiffs repeat, reiterate and reallege each and every allegation contained in the prior

paragraphs with the same force and effect as is more fully and at length set forth herein.

32 The plaintiffs' rights have been violated under the Fourth Amendment of the United States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that the plaintiffs were unlawfully subjected to excessive and unreasonable force, by the defendants who gratuitously and maliciously assaulted them with no need to use any force much less the brutal force they employed.

33 Plaintiff Benson was kicked and punched several times, with no legal necessity or justification, and the beating took place in part when the plaintiff was in handcuffs laying on the ground with officers on top of him.

34 There was no legal justification nor necessity to use any force whatsoever on the plaintiff Rowe, yet he was gratuitously thrown against a wall, thrown to the ground and punched as he lay on the ground.

35 The force defendants employed was used without plaintiffs' consent, with malice and with an intent to inflict pain and suffering.

36 The defendants who observed the beatings of the plaintiffs, and who had a reasonable opportunity to intervene and failed to do so, are liable to the plaintiffs via their failure to act pursuant to their duty to intervene to prevent violations of plaintiffs' rights committed in their presence.

37 Supervising defendant Lieutenant Mark Porto was present for the beating and participated by holding Benson down as he was beaten and by failing to intercede as a supervisor when he witnessed and even participated in the use of excessive force.

38 As a direct result of defendants' actions, plaintiffs were deprived of rights, privileges and immunities under the Fourth Amendment of the United States Constitution being more particularly plaintiffs' right to be free from the use of excessive and unreasonable force.

39 By reason of the unlawful use of excessive and unreasonable force, the plaintiffs were harmed physically, requiring Benson to receive medical treatment, including but not limited to,

hospitalization, lost bodily functions, the need for possible surgery, a bilateral nasal fracture, a deviated septum, both plaintiffs were subjected to physical pain, bruising, humiliation, embarrassment, anxiety, they were subjected to various ongoing physical and emotional harms, they were pecuniarily harmed and they were otherwise harmed.

40 By reason of the aforesaid, the plaintiff BENSON has been damaged in a sum not to exceed FIVE MILLION (\$5,000,000.00) DOLLARS, and that the plaintiff ROWE has been damaged in a sum not to exceed ONE MILLION (\$1,000,000.00) DOLLARS, and that the plaintiffs are entitled to awards of punitive damages, and that an award of attorneys' fees is appropriate pursuant to 42 U.S.C. §1988.

AS AND FOR A SECOND CAUSE OF ACTION
VIOLATION OF PLAINTIFFS' RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK VIA
BATTERY

41 Plaintiffs repeat, reiterate and reallege each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

42 The defendant NYC is vicariously liable to the plaintiffs for the individual defendants' common law torts via the principle of respondeat superior.

43 New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).

44 On January 1, 2010 defendants committed batteries of the plaintiffs in that their touching of the plaintiffs was harmful, unconsented, and unjustified and in so doing defendants violated the laws and Constitution of the State of New York and otherwise violated plaintiffs' rights under New York law.

45 By reason of the unlawful batteries, plaintiffs were harmed physically, requiring Benson to receive medical treatment, including but not limited to, hospitalization, lost bodily functions, the need for possible surgery, a bilateral nasal fracture, a deviated septum, both plaintiffs were subjected to physical pain, bruising, humiliation, embarrassment, anxiety, they were subjected to various ongoing physical and emotional harms, they were pecuniarily harmed and they were

otherwise harmed.

46 By reason of the aforesaid, the plaintiff BENSON has been damaged in a sum not to exceed FIVE MILLION (\$5,000,000.00) DOLLARS, and that the plaintiff ROWE has been damaged in a sum not to exceed ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS
VIOLATION OF THE PLAINTIFFS' RIGHTS UNDER
NEW YORK STATE LAW VIA
ASSAULT

47 Plaintiffs repeat, reiterate and reallege each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

48 On the aforementioned date, time and place the defendants committed the tort of assault against the plaintiffs by causing them to be in apprehension of imminent, unconsented, harmful and offensive touching and in so doing defendants violated the laws and Constitution of the State of New York and otherwise violated plaintiffs' rights under New York law.

49 By reason of the aforesaid acts, committed by defendants, plaintiffs suffered fear, anxiety and various emotional harms and they were otherwise damaged.

50 By reason of the aforesaid the plaintiffs have been damaged in a sum not to exceed FIVE HUNDRED THOUSAND (\$500,000.00) DOLLARS (each).

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS
VIOLATION OF PLAINTIFFS' RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AND
FOURTEENTH AMENDMENTS VIA
FALSE ARREST

51 Plaintiffs repeat, reiterate and reallege each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

52 The plaintiffs' rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. § 1983, in that the plaintiffs were falsely arrested by the defendants.

53 The plaintiffs were confined by defendants, defendants intended to confine the plaintiffs, plaintiffs were conscious of their confinement and plaintiffs did not consent to the confinement which was not otherwise privileged.

54 As a direct consequence of defendants' actions, plaintiffs were deprived of their rights, privileges and immunities pursuant to the Fourth Amendment of the United States Constitution and more particularly, their right to be free from arrest without probable cause.

55 Among other invasions of their privacy, offenses to their dignity and violations of their rights, plaintiffs were subjected to being handcuffed, searched, confined, insulted, humiliated and they were forced to appear in court.

56 The false arrests were caused by the defendants without any legal justification, without authority of the law and without any reasonable cause or belief that plaintiffs were in fact guilty of crimes.

57 Defendants who were aware of the false arrests and permitted the illegal detentions of the plaintiffs to commence and/or continue, are liable to plaintiffs by virtue of their failure to act pursuant to their affirmative duty to intervene.

58 By reason of the foregoing, plaintiffs sustained conscious pain and suffering; they were subjected to pecuniary harms; they were subjected to great indignities, humiliation, fear and anxiety; they were subjected to inhumane conditions; they were prevented from conducting their normal affairs of business, they were confined in jail, they were separated from their families, they were defamed in their community, they were forced to appear in court and they were otherwise harmed.

59 By reason of the foregoing, plaintiffs have been damaged in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS each, plaintiffs are entitled to awards of punitive damages and plaintiffs are entitled to awards of attorneys' fees pursuant to 42 U.S.C. § 1988.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS
VIOLATION OF PLAINTIFFS' RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK VIA
FALSE IMPRISONMENT

60 Plaintiffs repeat, reiterate and reallege each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

61 The plaintiffs' rights have been violated pursuant to the common law of the State of New York via False Imprisonment, in that the plaintiffs were falsely imprisoned by the defendants.

62 The plaintiffs were confined by defendants, defendants intended to confine the plaintiffs, plaintiffs were conscious of their confinement and plaintiffs did not consent to the confinement which was not otherwise privileged.

63 As a direct consequence of defendants' actions, plaintiffs were deprived of their rights, privileges and immunities pursuant to the common law of the State of New York and more particularly, their right to be free from arrest without probable cause.

64 Among other invasions of their privacy, offenses to their dignity and violations of their rights, plaintiffs were subjected to being handcuffed, searched, confined and they were humiliated.

65 The false arrests were caused by the defendants without any legal justification, without authority of the law and without any reasonable cause or belief that plaintiffs were in fact guilty of crimes.

66 By reason of the foregoing, plaintiffs sustained conscious pain and suffering; they were subjected to pecuniary harms; they were subjected to great indignities, humiliation, fear and anxiety, they were subjected to inhumane conditions, they were prevented from conducting their normal affairs of business, they were confined to jail, they were separated from their families, they were defamed in their community, they were forced to appear in court and they were otherwise harmed.

67 By reason of the foregoing, plaintiffs have been damaged in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS each.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS
VIOLATION OF PLAINTIFFS' RIGHTS PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AND
FOURTEENTH AMENDMENTS VIA
MALICIOUS PROSECUTION

68 Plaintiffs repeat, reiterate and reallege each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

69 The plaintiffs' rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. § 1983, in that the plaintiffs were maliciously prosecuted by the defendants.

70 The said malicious prosecution was initiated by the defendants, their agents, servants and employees, without any legal justification and without probable cause and the defendants caused the commencement and continuation of criminal proceedings against the plaintiffs, the proceedings terminated in favor of the plaintiffs via a dismissal and the criminal action was commenced and continued intentionally with malice and with deliberate indifference to plaintiffs' rights.

71 By reason of the unlawful malicious prosecution, the plaintiffs were subjected to pecuniary harms, great indignities, humiliation, anxiety, they were forced to spend time in jail as well as being forced to make court appearances, they were defamed in their community and they were subjected to numerous other harms.

72 By reason of the aforesaid, the plaintiffs have been damaged in a sum not to exceed ONE MILLION (\$1,000,000.00) DOLLARS (each), they are entitled to awards of punitive damages and attorney's fees are appropriate pursuant to 42 U.S.C. § 1988.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF
VIOLATION OF PLAINTIFFS' FOURTH AMENDMENT RIGHTS
BY THE CITY OF NEW YORK,
i.e., MONELL CLAIM

73 Plaintiffs repeat, reiterate and reallege each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

74 The plaintiffs' rights have been violated under the Fourth Amendment to the United States Constitution as made applicable to the states via the Fourteenth Amendment by the defendant, NYC.

75 Defendants NYC as well as unidentified police officers who were supervisors and final decision makers as a matter of policy and practice, have with deliberate indifference failed to properly train, discipline, sanction and retrain police officers, despite their knowledge of the recurring problem of officers beating civilians and covering up said beatings by bringing false charges to justify their acts of violence, and that there has been no meaningful attempt on the part of NYC to investigate or forestall further incidents.

76 The defendant NYC intentionally operates an ineffective Civilian Complaint Review Board, which operates for the purpose of wrongfully exonerating and failing to substantiate legitimate claims against officers.

77 The defendant NYC intentionally operates an ineffective Internal Affairs Department of the City's police department, which operates for the purpose of wrongfully exonerating and failing to substantiate legitimate claims against officers.

78 As a result of NYC's deliberate indifference to the ineffectiveness of the CCRB and IAB, the defendants in the instant case felt free to, and did in fact, violate the plaintiffs' rights.

79 It is the routine practice of NYPD officers to fail to act on their duty to intervene to protect civilians whose civil rights are being violated by other officers in their presence.

80 It the routine practice of NYPD officers to retaliate against officers who speak up and/or act when they witness other officers violating civilians' rights.

81 In the instant matter, due to the routine practices of the NYPD, several officers who saw the plaintiffs being beaten up gratuitously are caught on tape running away so as not to be present when the plaintiffs were being beaten, instead of intervening on their behalf.

82 Despite being often alerted to the recurring aforementioned problems, the NYPD has remained deliberately indifferent to said problems and in so doing encouraged its officers to persist in the aforesaid unconstitutional behavior.

83 The aforementioned unlawful customs and practices by subordinate officials of the NYPD are so manifest and widespread as to imply the constructive acquiescence of policymaking officials.

84 By reason of the aforementioned violations of plaintiffs' constitutional rights, the plaintiffs were subjected to great indignities, humiliation, embarrassment, anxiety, they were prevented from conducting their normal affairs of business, they suffered physical and emotional harms, they were falsely arrested and maliciously prosecuted, they were defamed in their community, they were forced to appear in court and they were subjected to numerous other harms.

85 By reason of the aforesaid, the plaintiff BENSON has been damaged in a sum not to exceed SIX MILLION (\$6,000,000.00) DOLLARS, and that the plaintiff ROWE has been damaged in a sum not to exceed TWO MILLION (\$2,000,000.00) DOLLARS, and that an award of attorneys' fees is appropriate pursuant to 42 U.S.C. §1988.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF ROWE
VIOLATION OF PLAINTIFF'S FIRST AMENDMENT RIGHTS VIA
RETALIATION

86 Plaintiffs repeat, reiterate and reallege each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

87 Plaintiff Rowe's rights have been violated under the First Amendment to the United States Constitution, as made applicable to the states via the Fourteenth Amendment via a retaliatory beating, a retaliatory false arrest and a retaliatory malicious prosecution.

88 Rowe had an interest protected by the First Amendment in telling the defendants to stop gratuitously and maliciously beating his neighbor and the defendants' actions in beating, falsely arresting and maliciously prosecuting Rowe were motivated or substantially caused by his exercise of that right and defendants' actions effectively chilled and prevented Rowe from exercising his First Amendment rights.

89 By reason of the violation of Rowe's rights, he was subjected to the use of unlawful, excessive and unreasonable force, he was harmed physically, plaintiff was subjected to physical

pain, bruising, humiliation, embarrassment, anxiety, he was subjected to various ongoing physical and emotional harms, he was pecuniarily harmed, he was falsely arrested, he spent time in jail, he was maliciously prosecuted, he was defamed in his community, he was prevented from conducting his normal affairs of business, he was forced to appear in court, he was separated from his family and he was otherwise harmed.

90 By reason of the aforesaid, the plaintiff ROWE has been damaged in a sum not to exceed TWO MILLION (\$2,000,000.00) DOLLARS, the plaintiff is entitled to an award of punitive damages and an award of attorneys' fees is appropriate pursuant to 42 U.S.C. §1988.

WHEREFORE, plaintiff Benson demands judgment against the defendants in a sum not to exceed FIVE MILLION (\$5,000,000.00) DOLLARS and punitive damages and plaintiff Rowe demands judgment against the defendants in a sum not to exceed ONE MILLION *(\$1,000,000.00) DOLLARS and punitive damages on the First Cause of Action; plaintiff Benson demands judgment against the defendants in a sum not to exceed FIVE MILLION (\$5,000,000.00) DOLLARS and plaintiff Rowe demands judgment against the defendants in a sum not to exceed ONE MILLION (\$1,000,000.00) DOLLARS on the Second Cause of Action; plaintiffs demand judgment in a sum not to exceed FIVE HUNDRED THOUSAND (\$500,000.00) DOLLARS (each) on the Third Cause of Action; plaintiffs demand judgment in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS (each) and punitive damages on the Fourth Cause of Action; plaintiffs demand judgment in a sum not to exceed ONE HUNDRED THOUSAND (\$100,000.00) DOLLARS (each) on the Fifth Cause of Action; plaintiffs demand judgment in a sum not to exceed ONE MILLION (\$1,000,000.00) DOLLARS (each) and punitive damages on the Sixth Cause of Action; plaintiff Benson demands judgment against the defendants in a sum not to exceed SIX MILLION (\$6,000,000.00) DOLLARS and plaintiff Rowe demands judgment against the defendants in a sum not to exceed TWO MILLION (\$2,000,000.00) DOLLARS on the Seventh Cause of Action; and plaintiff Rowe demands judgement in a sum not

to exceed TWO MILLION (\$2,000,000.00) DOLLARS plus punitive damages on the Eighth Cause of Action, along with reasonable attorney's fees pursuant to 42 U.S.C. § 1988 on all plaintiffs' federal causes of actions together with costs and disbursements of this action; a trial by jury of all issues involved in this complaint; and such other and further relief as this Court may deem just and proper under the circumstances.

Dated: March 27, 2012
New York, New York

/ s /

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